



999

STATE OF COLORADO

DIVISION OF MINERALS AND GEOLOGY

Department of Natural Resources

1313 Sherman St., Room 215

Denver, Colorado 80203

Phone: (303) 866-3567

FAX: (303) 832-8106

January 28, 2000

Mr. John Lohr
Southdown Co., Inc.
P.O. Box 529
Lyons, CO 80540



Bill Owens
Governor

Greg E. Walcher
Executive Director

Michael B. Long
Division Director

RE: Second Technical Adequacy Review of Technical Revision 001, Lyons Quarry,
Permit No. #M-77-208

Dear Mr. Lohr,

This letter is being written to address the only issue which needs to be resolved in the technical revision submitted by your company to the Division of Minerals and Geology (DMG) on December 1 (Lyons Quarry, Permit No. #M-77-208). Please address this concern prior to the decision due date of January 31, 2000.

Monitoring Program Standards and Reporting:

After five quarters of data have been gathered from all of the monitoring points, this data is to be submitted to the Division so that DMG may form an opinion on numeric standards for the parameters being monitored. After this standard has been set, if the Operator should find that these standards have been exceeded in any sampling event, they should report the exceedance to the Division immediately, so that proper action may be taken, and provide the Division with a written report within five (5) working days, when there is evidence of groundwater discharges exceeding applicable standards or permit conditions imposed to protect groundwater quality. Please commit to this course of action. This is in accordance with Rule 3.1.7(6) and (7) of the Construction Materials Rules and Regulations.

Please be advised that this technical revision may be deemed inadequate, and your application may be denied on January 31 unless the adequacy items listed above are addressed to the satisfaction of the Division. If you wish, you may request an extension the decision due date, to allow for more time to resolve this issue. If you have any further questions, please contact me at (303) 866-3567.

Sincerely,

Christina L. Kamnikar
Environmental Protection Specialist

Cc: Carl B. Mount, DMG
H. Bruce Humphries, DMG
Harry H. Posey, DMG
Paul Banks, Banks & Gesso
St. Vrain Community Watch Dogs Group

St. Vrain Valley
Community Watchdogs
P.O. Box 82
Hygiene, CO 80533-0082

Paul Banks
Banks & Gesso, LLC
720 Kipling, Suite 117
Lakewood, CO 80215

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FAX COVER SHEET (Fax # 303-832-8106)

TO: Paul Benkes

CO./AGENCY: Banks & Gesso

No. of Pages Sent: 1

FROM: CZ Kaminski FAX NO.: (303) 274-8329

MESSAGE TO RECIPIENT:

TAR - Monitoring - Lyons

DATE: 1/28/00

PROGRAM: MINS. ☒ COAL ☐ AML ☐ M. SAFETY ☐

TIME TO BE SENT: ASAP ☒ or NIGHT RATE ☐

* * * COMMUNICATION RESULT REPORT (JAN.28.2001 4:37PM) * * *

TTI DIV/MINERALS&GEOLOGY

FILE MODE	OPTION	ADDRESS (GROUP)	RESULT	PAGE
342	MEMORY TX	3032748329	OK	P. 2/2

REASON FOR ERROR
 E-1) HANG UP OR LINE FAIL
 E-3) NO ANSWER

E-2) BUSY
 E-4) NO FACSIMILE CONNECTION

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